

Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement (the “Agreement”) is entered into as of October 4, 2026 (the “Effective Date”) by and between **Northwind Labs LLC**, with its principal address at 500 Market St, San Francisco, CA 94105 (a “Party”), and **Daniel Cho**, of 88 Pine Ave, Oakland, CA 94607 (a “Party”, and together the “Parties”).

The Parties wish to exchange certain confidential information for the purpose of evaluating a potential product partnership (the “Purpose”). Each Party may act as a disclosing Party and as a receiving Party under this Agreement.

1. Confidential Information. “Confidential Information” means any non-public information disclosed by the disclosing Party to the receiving Party, whether in writing, orally, electronically or by inspection, including business plans, financial information, customer and supplier lists, pricing, product designs, software, source code, know-how, inventions, trade secrets and any other information that a reasonable person would understand to be confidential.

2. Obligations. The receiving Party shall:

- (a) hold the Confidential Information in strict confidence and protect it with at least the same degree of care it uses for its own confidential information, and no less than reasonable care;
- (b) use the Confidential Information only for the Purpose;
- (c) not disclose the Confidential Information to any third party, except to its employees, contractors and advisers who need to know it for the Purpose and who are bound by confidentiality obligations at least as protective as those in this Agreement; and
- (d) promptly notify the disclosing Party of any unauthorized use or disclosure it becomes aware of.

3. Exclusions. Confidential Information does not include information that the receiving Party can show:

- (a) is or becomes publicly available through no fault of the receiving Party;
- (b) was lawfully known to the receiving Party before it was disclosed under this Agreement;
- (c) is lawfully received from a third party without a duty of confidentiality; or
- (d) is independently developed by the receiving Party without use of the Confidential Information.

4. Required Disclosure. If the receiving Party is required by law, regulation or court order to disclose Confidential Information, it shall (where legally permitted) give the disclosing Party prompt written notice and reasonable assistance so that the disclosing Party may seek a protective order, and shall disclose only the portion that is legally required.

5. Term. The obligations in this Agreement shall survive for three (3) years from the Effective Date. Obligations relating to trade secrets shall continue for as long as the information remains a trade secret under applicable law.

6. Return of Materials. Upon written request of the disclosing Party, the receiving Party shall promptly return or destroy all Confidential Information in its possession, including copies, and confirm in writing that it has done so, except for copies it is required to keep by law.

7. No License or Warranty. All Confidential Information remains the property of the party that disclosed it. Nothing in this Agreement grants any license or right in any patent, copyright, trademark or other intellectual property. Confidential Information is provided “as is” without warranty of any kind.

8. Remedies. Unauthorized use or disclosure of Confidential Information may cause irreparable harm for which money damages would be inadequate. Each Party shall be entitled to seek injunctive relief, in addition to any other remedies available at law or in equity, without the need to post a bond.

9. General. This Agreement is governed by the laws of the State of California, without regard to its conflict of laws rules. This Agreement is the entire agreement between the parties about its subject matter and may only be changed in a writing signed by both parties. Neither party is obligated to enter into any further agreement or transaction. If any provision is found unenforceable, the remainder shall remain in effect. This Agreement may be signed in counterparts and by electronic signature, each of which is deemed an original.

IN WITNESS WHEREOF, the parties have signed this Agreement as of the Effective Date.

FIRST PARTY

SECOND PARTY

Company: Northwind Labs LLC

Signature: _____

Signature: _____

Name: Daniel Cho

Name: Priya Patel

Date: _____

Title: CEO

Date: _____